

Last Updated and Effective Date –August 15, 2018

1. This is a Legal Agreement.

These Terms of Service (the "**Terms**") are a legal agreement between you and Hossparts Inc. ("**Hossparts**", "**we**", "**our**" or "**us**") governing your access to and use of our website and related mobile and software application (collectively, the "**Services**").

Please read the Terms carefully before using the Services. You may wish to print a copy of these Terms or save them to your device for future reference. Your use of the Services indicates your acceptance and agreement to be bound by the Terms. Do not use the Services if you do not accept the Terms. You agree that you are solely responsible for (and that Hossparts has no responsibility to you or to any third party for) your use of our application, any breach by you of the Terms and for any consequences, including any loss or damage, directly or indirectly, which we may suffer as a result of your breach. We may modify the Services or the Terms at any time, for example to reflect changes in laws or regulatory requirements. Any use of the Services by you after we post modifications to the Terms constitutes your acceptance of those modifications.

2. Use of Application and Prohibited Activities.

Hossparts grants you a non-exclusive, non-transferable, non-sublicensable, limited right and licence to install and use our application solely and exclusively for your personal use on your device and as permitted by the Usage Rules set forth in the [App Store Terms and Conditions](#) for the iOS Application or the [Google Play Terms of Service](#) for the Android Application.

You may not access or use, or attempt to access or use, the Services to take any action that could harm us or any other person or entity (each a "**person**"), interfere with the operation of the Services, or use the Services in a manner that violates any laws. For example, you may not:

- Impersonate any person or falsely state or otherwise misrepresent your credentials, affiliation with any person, or the origin of any information you provide;
- Engage in unauthorized spidering, scraping, or harvesting of content or information, or use any other unauthorized automated means to compile information;
- Solicit, collect, transmit, store, or otherwise make available private information of any third party including, without limitation, telephone numbers, addresses, last names, email addresses, or credit or debit card numbers;
- Obtain or attempt to gain unauthorized access to other computer systems, materials, information, or any services available on or through the Services;
- Use any device, software, or routine to interfere or attempt to interfere with the proper working of the Services or any activity conducted on the Services or attempt to probe, scan, test the vulnerability of, or breach the security of any system, device, or network;
- Circumvent, reverse engineer, decipher, decompile, disassemble, decrypt, or otherwise alter or interfere with (or attempt, encourage, or support anyone else's attempt to engage in such activities) any of the software comprising or in any way making up a part of the Services. The use or distribution of tools designed for compromising security (e.g., password guessing programs, cracking tools, or network probing tools) is strictly prohibited;
- Use or attempt to use another's information, account, password, service, or system except as expressly permitted;
- Take any action that could damage or impair the application or that imposes an unreasonable or disproportionately large load on our network or infrastructure;
- Upload or otherwise transmit any communication, software, or material that contains a virus or is otherwise harmful to our or our users' computers, devices, or systems; or

- Engage in any other conduct that restricts or inhibits any person from using or enjoying the Services, or that, in our sole judgment, exposes us, users, or any other third party to any liability, damages, or detriment of any type.

Violations of system or network security and certain other conduct may result in civil or criminal liability. We may investigate and work with law enforcement authorities to prosecute users who violate the Terms. We may suspend or terminate your access to the Services for any or no reason at any time without notice.

3. Registration and Use of Services: Goalies and Renters

- To use the Services as either a “Renter” or a “Goalie” you will need to create an account. “**Renters**” are individuals using the Services to book a Goalie for a Game or event and a “**Goalie**” is a person using the Services to provide his/her services as a goalie to a Renter for a Game or event. There is no charge or fee to create an account as either a Renter or a Goalie. All that is required is to completely and accurately provide the requisite information as specified below.
- For “**Renters**”, the following information is required to create an account for Renters is the following: first and last name, postal code, email address, and mobile phone number. For “**Goalies**”, in addition to the personal information required of Renters, the following information is also required: age, gender, playing history, caliber, HSHC registration, whether currently a “rental” goalie and distance willing to travel.
- As either a Renter or a Goalie, you will also be required to select a username and password (“**Access Credentials**”). You are responsible for maintaining the confidentiality of your Access Credentials and if you know or suspect that anyone other than you know your Access Credentials, you must promptly notify us.
- All information submitted by you shall be subject to and governed by the terms of our Privacy Policy located at www.hockeyrentagoalie.com, which is hereby incorporated by reference and forms an integral part of these Terms.
- Renters:** You may use the Services to book the use of a Goalie for a Game or event (a “**Rental**”). All the required information (which includes game date and time, caliber required, number of Goalies, format, duration, gender, nature of game (i.e. playoff), team name, rink name and location and any special instructions) (the “**Rental Criteria**”), must be submitted at the time of the Rental. It is the Renter’s responsibility to ensure all required information is correct and accurate and Hossports assumes no responsibility for any incorrect or inaccurate information provided by a Renter at the time of the Rental. Upon submission of Rental Criteria by the Renter, available Goalies will submit their availability based upon the Rental Criteria. Renter shall then select an available Goalie from the list generated using the Services. Upon such selection, the Rental shall be confirmed and both Goalie and Renter shall be notified. In addition, by using the Services, Renters acknowledge and agree that:
 - Hossports does not make any representation or warranty, whether express or implied, regarding the fitness, quality or performance of any Goalies provided using the Services and is relying exclusively on information provided by Goalies who have registered with the Service;
 - you shall be solely responsible for any adjustments of the Rental Fees for lateness or extra time as described above, and release Hossports from any responsibility or liability in

respect of any disputes arising from adjustments to Rental Fees, lateness of a Goalie, or other related issues that occur during a Game or event;

- you may cancel your Rental no later than 4 hours prior to the start of a Game or event;
- you shall not induce, entice, persuade or otherwise solicit the Goalie provided through these Services to circumvent the use of the Services for future rental services; and
- You are solely responsible for any additional or ancillary fees associated with a Game or event such as such as arena parking fees, ice rental fees, equipment rentals, etc.

f. Rental Fees, Service Charges and Taxes

Rental Fees: Set out below are the applicable Rental Fees for renting a Goalie and Renters agree to pay such fees as applicable:

- (i) \$50 - 60 minutes
- (ii) \$65 – 90 minutes
- (iii) \$75 – 120 minutes

Rental Payment: Renter shall pay the applicable Rental Fee to the Goalie directly, at the time of the Game, in cash. Renters and Goalies acknowledge and agree that the contract for the goalie services is between them and Hossparts shall not in any way be responsible or liable for any failure or omission of a Renter to pay a Goalie the Rental Fees as required by these Terms. Hossparts shall have the right in its sole and absolute discretion to immediately terminate and cancel without notice the account of any Renter who does not pay any fee as required by these Terms.

Service Charges: Goalies agree to pay Hossparts a service charge ("**Service Charge**") for the use of the Services. The Service Charge is as follows:

- (i) \$15 per Rental.

The Service Charge is based on a fixed rate and does not vary based on game length. The Service Charge is due and payable after every Game played. Payment can be made by way of e-transer (preferred method) to "hossparts@gmail.com" or by cheque or cash. Cheques are to be payable to "Hossparts Inc." at 20 Thomas Reid Road Markham, ON L6C 1A5. Failure to pay the Service Charge will result in a suspension of your account and may lead to account termination. If full payment of all Service Charges then due and outstanding is not received from the Goalie by the fifth Game played through the Services, the Goalies' account will be suspended and such Goalie will not be able to post his/her availability for a future Game or event until payment is received by Hossparts. Once payment is received, the account will be reactivated and the Goalie will then again be able to use the Services.

All amounts of fees listed in these Terms or through the Services are in Canadian dollars and include sales taxes as applicable. Hossparts retains the absolute discretion to set the amount of the fees. The amounts of the fees listed in this section is subject to change without notice, which shall be posted upon your making a Rental.

4. Additional Covenants for Goalies:

In addition, by using the Services as a Goalie, you represent, warrant, covenant and agree that:

- (i) all the information you submit is true and correct in all material respects;
- (ii) you are at least 18 years of age and have all equipment necessary to provide your services as a Goalie;
- (iii) you are in good health and physical condition and shall have a requisite level of fitness to perform such services;
- (iv) you shall at all times be responsible for your behavior and actions during Games and expressly release the Releasees (as defined below) from all liability and responsibility in connection therewith;
- (v) you shall arrive no later than fifteen minutes prior to the scheduled start time of a Game and be ready and prepared to play at its start time;
- (vi) if for any reason you cannot play a Game for which you are booked, you must notify the Renter and Hossparts no later than four hours prior to the scheduled start time;
- (vii) you shall be responsible for collecting the Rental Fee from the Renter and for paying Hossparts the Service Charge and that the transaction for your services facilitated through the Services is a transaction between you and the Renter;
- (viii) you acknowledge that the relationship between you and Hossparts is that of independent contractors and that you are not an employee of Hossparts;
- (ix) you acknowledge there are risks associated with providing the services of goalie and the strenuous athletic and physical activity involved in providing such services and you expressly assume all risk of injury (including permanent disability and death) arising out of your participation as a Goalie provided through the Services; and
- (x) you shall fully and forever release and indemnify Hossparts and all of its officers, directors, shareholders and employees (collectively, the "**Releasees**") from and against all loss, damage, expenses, injury, actions, causes of action, howsoever arising out of your participation as a Goalie through the Services and any claims or demands therefor on account of injury to you or your property whether caused by negligence of Releasees or otherwise;

5. Intellectual Property.

All content, information, computer code, software, and any other materials that are part of the Services (collectively, the "**Hossparts Content**") is the property of Hossparts or third parties.

Copyright and Other Intellectual Property Rights. Certain of Hossparts Content is protected under the copyright laws of Canada, the United States and other countries. You acknowledge that all copyrights and other intellectual property rights related to the Services are owned by Hossparts or its third-party licensors to the full extent permitted Canadian, United States and international copyright laws, and all other applicable laws. Unless expressly permitted by an authorized person in writing or as permitted by applicable law, you may not copy, reproduce, distribute, publish, enter into a database, display, perform, modify, create derivative works from, transmit, or in any way use or exploit any part of Hossparts Content. Copying or downloading Hossparts Content other than as stated above is a violation of these Terms.

Trade and Service Marks. You acknowledge and agree that all proprietary materials depicted in connection with the Services and Hosspports Content are the property of Hosspports and are owned by or licensed to Hosspports and may not be used commercially without the prior written consent of Hosspports and/or the applicable licensor.

6. Change or Termination.

Hosspports may change or terminate these Terms for any reason at any time, for example to reflect changes in laws or regulatory requirements. We reserve the right, in our sole discretion, to restrict, suspend, or terminate your access to and use of the Services, with or without prior notice. Hosspports also reserves the right to modify the price of any Services or any other services offered via the Services. Hosspports is not responsible for any error in copy or images relating to the Services or any other services offered via the Services.

Otherwise applicable sections of these Terms shall survive termination. Hosspports also reserves the right to seek all remedies available at law and in equity for violations of these Terms. Upon termination, you must cease all use of the Services.

7. Privacy Policy.

By using the Services, you acknowledge that you have reviewed and understand our Privacy Policy (the "**Privacy Policy**"). You agree (i) to provide accurate, current, and complete information about yourself as may be prompted by any registration or other forms (collectively, "**Registration Data**"); (ii) to maintain the security of your Access Credentials; (iii) to maintain and promptly update Registration Data and any other information you provide to Hosspports; (iv) not to sell, transfer, or assign your account; and (v) to be fully responsible for all use of your account and for any actions that take place using your account.

8. Links and Third Party Content.

The Services may contain links to other websites or online services that are operated and maintained by other persons and that are not under the control of or maintained by Hosspports. Such links do not constitute an endorsement by Hosspports of those other websites or online services, the content displayed therein, or the persons associated therewith. These Terms do not apply to such other websites and online services, and such websites and online services are not part of the Services. We encourage you to review the privacy policies and terms of use of these other websites or services.

We may incorporate third party services, software, technology, data, and/or other content (collectively, "**Third Party Materials**") either independently or in connection with various programs, features, or functions available through the Services. Your use of Third Party Materials may be subject to terms of use other than these Terms and as may be set forth by third party providers, as applicable. You agree and acknowledge that Hosspports assumes no liability with respect to your use of such Third Party Materials whether you are aware of their use or not and whether or not the use of such Third Party Materials is endorsed or recommended by Hosspports.

9. Disclaimer of Warranties.

YOUR USE OF THE SERVICES IS ENTIRELY AT YOUR OWN RISK. WE MAKE NO REPRESENTATIONS OR WARRANTIES ABOUT THE SERVICES, INCLUDING, WITHOUT LIMITATION, THE OPERATION OF THE SERVICES OR THE INFORMATION, MATERIALS, GOODS, OR SERVICES APPEARING OR OFFERED ON THE SERVICES OR WITH RESPECT TO ANY WEBSITES OR SERVICES LINKED FROM THE SERVICES. THE SERVICES ARE PROVIDED

"AS IS", "WITH ALL FAULTS," AND "AS AVAILABLE." WITHOUT LIMITING THE GENERALITY OF THE FOREGOING, WE DISCLAIM ALL WARRANTIES AND CONDITIONS, EXPRESS, STATUTORY, OR IMPLIED, INCLUDING BUT NOT LIMITED TO (I) THE WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, WORKMANLIKE EFFORT, TITLE, QUIET ENJOYMENT, NO LIENS, AND NO ENCUMBRANCES; (II) THE WARRANTIES AGAINST INFRINGEMENT, MISAPPROPRIATION, OR VIOLATION OF ANY INTELLECTUAL PROPERTY OR PROPRIETARY RIGHTS OF ANY PERSON; (III) WARRANTIES ARISING THROUGH COURSE OF DEALING OR USAGE IN TRADE; AND (IV) THE WARRANTIES RELATING TO THE ACCURACY, RELIABILITY, CORRECTNESS, OR COMPLETENESS OF DATA OR CONTENT MADE AVAILABLE ON THE SERVICES OR OTHERWISE BY HOSSPORTS. FURTHER, THERE IS NO WARRANTY THAT THE SERVICES WILL MEET YOUR NEEDS OR REQUIREMENTS OR THE NEEDS OR REQUIREMENTS OF ANY OTHER PERSON OR THE NEEDS OR REQUIREMENTS SET FORTH IN ANY DOCUMENTATION. WE MAKE NO WARRANTIES, EXPRESS, STATUTORY, OR IMPLIED, THAT THE SERVICES, INCLUDING, WITHOUT LIMITATION, HOSSPORTS CONTENT, FUNCTIONS, OR MATERIALS CONTAINED THEREIN, WILL BE TIMELY, SECURE, ACCURATE, ERROR-FREE, COMPLETE, UP-TO-DATE, FREE OF VIRUSES, OR UNINTERRUPTED. HOSSPORTS MAKES NO REPRESENTATION THAT THE SERVICES ARE APPROPRIATE OR AVAILABLE FOR USE OUTSIDE OF CANADA. NO ORAL OR WRITTEN INFORMATION MADE AVAILABLE BY OR ON BEHALF OF HOSSPORTS SHALL CREATE ANY WARRANTY.

IF APPLICABLE LAW DOES NOT ALLOW THE EXCLUSION OF SOME OR ALL OF THE ABOVE IMPLIED OR STATUTORY WARRANTIES TO APPLY TO YOU, THE ABOVE EXCLUSIONS WILL APPLY TO YOU TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW.

10. Exclusive Remedy and Limitation of Liability.

UNDER NO CIRCUMSTANCES, INCLUDING WITHOUT LIMITATION NEGLIGENCE, WILL HOSSPORTS, ITS AFFILIATES, OR ANY PARTY INVOLVED IN OPERATING, CREATING, PRODUCING, OR DELIVERING THE SERVICES BE LIABLE FOR DAMAGES OR LOSSES INCLUDING WITHOUT LIMITATION DIRECT, INCIDENTAL, CONSEQUENTIAL, INDIRECT, SPECIAL, OR PUNITIVE DAMAGES OR LOST PROFITS ARISING OUT OF THE TERMS OR YOUR ACCESS, USE, MISUSE, OR INABILITY TO USE THE SERVICES OR ANY SITES LINKED FROM THE SERVICES, HOWEVER CAUSED, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR OTHERWISE, EVEN IF HOSSPORTS HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, OR IN CONNECTION WITH ANY FAILURE OF PERFORMANCE, ERROR, OMISSION, INTERRUPTION, DEFECT, DELAY IN OPERATION OR TRANSMISSION, COMPUTER VIRUS, LINE OR SYSTEM FAILURE, OR OTHER TECHNOLOGICALLY HARMFUL MATERIAL THAT MAY INFECT YOUR DEVICE, DATA, OR OTHER PROPRIETARY MATERIAL DUE TO YOUR USE OF OUR SERVICES OR TO YOUR DOWNLOADING OF ANY CONTENT ON IT OR ON ANY WEBSITE LINKED TO IT.

BECAUSE SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OR LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES, HOSSPORTS' LIABILITY IN SUCH JURISDICTIONS FOR SUCH DAMAGES SHALL BE LIMITED TO THE EXTENT PERMITTED BY LAW. NOTHING IN THESE TERMS EXCLUDES OR LIMITS OUR LIABILITY FOR DEATH OR PERSONAL INJURY ARISING FROM OUR NEGLIGENCE, OR OUR FRAUD OR FRAUDULENT MISREPRESENTATION, OR ANY OTHER LIABILITY IF AND ONLY IF SUCH LIABILITY CANNOT BE EXCLUDED OR LIMITED BY APPLICABLE LAW.

ANY CLAIM AGAINST US SHALL BE LIMITED TO THE AMOUNT YOU PAID, IF ANY, FOR USE OF THE SERVICES.

11. Indemnification.

You agree to indemnify, hold harmless, and defend Hossparts and its affiliates, and licensors, any party involved in operating, creating, producing, or delivering the Services, and each of their respective officers, owners, directors, shareholders, partners, contractors, agents, employees, general and limited partners, successors, and assigns from and against any and all demands, claims, damages, liabilities, judgments, fines, interest, penalties, losses, costs, expenses, and harms, including without limitation reasonable attorneys' fees and fees of other professional advisers, arising out of or in connection with (i) your use of the Services, (ii) your conduct in connection with the Services, (iii) your violation or breach of these Terms, (iv) your failure to comply with any applicable laws or regulations in connection with the Services, (v) your negligence, willful misconduct, or violations of the intellectual property or other rights of any person in connection with the Services, or (vi) any of your dealings or transactions with other persons resulting from use of the Services.

12. Integration and Severability and Amendment.

These Terms constitute the entire agreement between Hossparts and you, superseding any prior or contemporaneous communications and proposals (whether oral, written, or electronic) between you and us. In the event any provision of these Terms is held unenforceable, it will not affect the validity or enforceability of the remaining provisions and will be replaced by an enforceable provision that comes closest to the intention underlying the unenforceable provision. Hossparts in its sole discretion may amend these Terms, in which case we will post the amended Terms within the Services. Your use of the Services after such amended Terms are posted will constitute acceptance of them by you. Hossparts may be required to notify you of certain events concerning the Services and your use thereof, and your use of the Services constitutes acceptance that such notices will be effective upon our posting them on the applicable Services or, if we elect in our sole discretion, emailing you at an address you have provided to us.

13. No Waiver.

Our failure to enforce any provisions of the Terms or respond to a breach by you or other parties shall not in any way waive our right to enforce subsequently any terms or conditions of the Terms or to act with respect to similar breaches.

14. Governing Law and Jurisdiction.

These Terms and the relationship between you and Hossparts shall be governed by the laws of the Province of Ontario without regard to its conflict of law provisions. You and Hossparts agree to submit to the personal and exclusive jurisdiction of the courts located within the Province of Ontario.

15. Acceptance of Terms of Use. BY USING ANY SERVICE, YOU SIGNIFY YOUR AGREEMENT TO THESE TERMS. If you do not agree to these Terms, you must not use any of the Services. Hossparts may change the terms of this Agreement at any time, and your use of Services after such change is posted will mean that you accept such change.